Policy and Procedure

Policy #: IV. Public 2
Date Issued: 9/20/05
Effective Date: 9/20/05

Subject: **UNATTENDED CHILDREN**

Application: All Staff

POLICY

The Organization welcomes and encourages children to visit the company, use company resources and services, and attend company programs. Staff members are available to help and support children; however, the company is not able to provide short- or long-term child care, or be responsible for unattended children.

Unattended children are children of any age who are apparently unaccompanied by a parent, guardian, or responsible caregiver. Children who are unable or unwilling to care for themselves may not be left alone in the Library and must have adequate supervision while in the company. The Organization is not responsible if children leave the Library unattended.

Parents, guardians, or caregivers are responsible for the safety, behavior, and supervision of children at all times in the company and on company property. Children are expected to respect company property and adhere to the rules outlined in the Organization in the Organization Policy.

Company staff will attempt to contact a parent, guardian, or caregiver in circumstances such as the following:

- An unattended child is engaging in behavior that is disruptive to other library users, staff, or the normal operations of business.
- An unattended child is involved in a situation that is potentially harmful to the health or safety of the child or others.
- An unattended child is left alone at the company at closing time.

Such situations will be handled on a case-by-case basis. If parents, guardians, or caregivers cannot be reached, or are unresponsive, the Library will work with other city agencies as needed.

Policy approved by Board of Trustees: September 20, 2005

Related Documents: None
Related Policies: Public Behavior in the Company Policy
Issued by: Public Service Policy Committee
Supersedes Policy #: IV. Public 2, Policy on Unattended Children (November 1997)

GUIDELINES

The following guidelines are meant to assist staff in the implementation of the Unattended Children Policy. Because of the numerous variations of situations that can and do occur, it is impossible to list a specific procedure for each of them**. Staff should consider every situation that occurs on a case-by-case basis, engage in creative problem solving, and exercise their best judgment in resolving the situation.** As long as decisions and actions are carried out according to policy and to the best of one's ability, they will be supported by other staff and supervisors, Neighborhood Services, Central Administration, and the Department of Public Safety.

Disruptive Children:

All company users, regardless of age, are expected to follow the Public Behavior in the Library Policy:

- Staff should take a positive approach with unattended children who are being disruptive, suggesting alternative positive activities, and offering reasonable opportunities to cease disruptive behavior.
- If a disruptive child is accompanied by a parent, guardian, or caregiver who is not monitoring or attentive to the behavior of the child, staff may need to make the responsible person aware that the behavior violates the Public Behavior in the Company Policy and request that the offending behavior cease.
- Asking an unattended disruptive child to leave the Company should always be a last resort, to be avoided whenever possible, always taking into account the safety and maturity of the child. If the disruption continues beyond a tolerable time or level, despite attempts to correct it, further action may be necessary: this may include calling in other staff members; calling the parent, guardian, or caregiver; calling the Department of Public Safety; or calling 911 for assistance, depending on the severity of the situation.
- Staff members should not arbitrarily suspend disruptive unattended children from the Library. Standard procedures for suspending company privileges should be followed as set forth in the Public Behavior in the Company Policy. The Department of Public Safety and parents, guardians, or caregivers of the child in question should be involved in this procedure.

Health & Safety:

- If an unattended child appears ill or is injured on property, staff should first and immediately offer to obtain medical assistance for him or her.
- In the case of a medical emergency involving an unattended child who is too young, too ill, or too injured to act in his or her own behalf, staff should immediately call 911 and make every effort to contact the child's parent, guardian, or caregiver.
- Staff should not try to treat any sick or injured child; however such external aids as adhesive bandages (Band-Aids), tissues,

towels, or ice packs may be offered if available, until medical help arrives.

- No medications (including pain relievers) should be offered or given.
- In any situation in which staff feel that the health, safety, or security of other company users or staff is being compromised or threatened by unattended children, they may and should take any and all appropriate action including, but not limited to, calling the Department of Public Safety, the local police precinct, or 911 for assistance.

Suspicion of Child Abuse or Neglect:

Library staff are not mandated reporters of child abuse or neglect, but if you see a situation that leads you to suspect abuse or neglect, you may, as a concerned citizen, report the situation to New York City's non-emergency information number (311) or to the New York State Child Abuse Hotline (800-342-3720)

Unattended Children at Closing:

If an unattended child is left at the Company at closing time:

- A reasonable attempt should be made to contact a parent, guardian, or responsible caregiver.
- At least two staff members should wait with the child for a reasonable amount of time past closing for the child to be picked up.
- If, after a reasonable amount of time, the child is not picked up, the Department of Public Safety should be called first, and then the local police precinct if necessary.
- Staff should not take or move a child to any location outside of the Library.

Company Use by School-Age Children during School Hours:

New York State Education Law requires school attendance for children between ages six and sixteen, and parents or guardians are responsible for their children's education. While not a mandated reporting agency for truancy, the Organization is, as a community agency, concerned about the welfare of all children.

There are many valid reasons for children to be in the company during normal school hours, including but not limited to the following:

- They are homeschooled.
- They attend schools with nontraditional scheduling or split sessions (common in overcrowded schools).
- Their school is out of session due to meetings, conferences, holidays, or other reasons.

Staff should be aware of unattended children in the building at all times. If you have reason to be concerned about a child's welfare, it is

appropriate to speak to the child about your concerns. If you have reason to be concerned about a child's habitual presence in the Library during school hours, it is appropriate to contact the Department of Public Safety (Command Center) who will work with parents, guardians, or caregivers, as well as other city agencies.

Phone Use by Children:

Children may be allowed to use company phones to call a parent, guardian, or caregiver at home or work when the reason is deemed appropriate, such as making arrangements to get home. Staff should be flexible with these requests, based on the situation and prior history and knowledge of the child and his or her circumstances.

Additional Information:

- Unattended Children Discussion Notes on B-Line. Please check here for additional information and situations not specifically covered in these guidelines.
- Department of Public Safety and Regional Senior Managers' cell phone list
- New York State Child Protective Services (800-342-3720) and the New York City nonemergency information hotline (311)

PROCEDURE

Every applicable incident should be documented with Form 317 (Incident Report).